

Calendar Line # 7
Case Name Immigrant Rights Defense Council, LLC et al vs Shamsher Brar
Case No. 25CV457348
Motion to Compel Responses to Form Interrogatories & Sanctions On July 18, 2025, the plaintiff, Immigration Rights Defense Council (“Plaintiff”) filed a motion to compel responses for form interrogatories (“RFI”), set one and sanctions against Defendant Shamsher Brar. The motion was accompanied by a proof of service via mail delivery on that same day. No opposition papers were filed. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 6, 2026.¹¹ A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). Moving party meets its burden of proof. <u>I. BACKGROUND</u> The Court has carefully reviewed Plaintiff’s moving papers including, notice of motion, memorandum of points and authorities, Declaration of Sebastian M. Medvei and attached Exhibit 1, and proof of service, (totaling 18pages); and the pleadings. <u>II. LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 2017.010: “Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” For discovery purposes, information is regarded as relevant “if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement thereof.” (<i>City of Los Angeles v. Superior Court</i> (2017) 9 Cal.App.5th 272, 288) .Where a party objects or responds inadequately to discovery requests, a motion lies to compel further responses, and that party has the burden to justify the objections or inadequate responses. (<i>Fairmont Ins. Co. v. Superior Court</i> (2000) 22 Cal.4th 245, 255; Code Civ. Proc., § 2031.310, subd. (a) [motion to compel further responses lies “[o]n receipt of a response to a demand for inspection”]). “A trial court’s determination of a motion to compel discovery is reviewed for abuse of discretion. However, when the facts asserted in support of and in opposition to the motion are in conflict, the trial court’s factual findings will be upheld if they are supported by substantial evidence.” (<i>Costco Wholesale Corp. v. Superior Court</i> (2009) 47 Cal.4th 725, 733). “The purpose of the discovery rules is to enhance the truth-seeking function of the litigation process and eliminate trial strategies that focus on gamesmanship and surprise. In other words, the discovery process is designed to make a trial less a game of blindman’s bluff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent.” (<i>Juarez v. Boy Scouts of Am., Inc.</i> (2000) 81 Cal.App.4th 377, 389). <u>A. Procedural Requirements</u> (1) Timeliness Code of Civil Procedure section 2030.300, subdivision (c), provides that notice of a motion to compel further responses must be given within 45 days following the service of the verified response, or any

¹¹ The Court notes that this is the third discovery motion that was unopposed in this matter. On May 5, 2026, the court heard the plaintiff’s motion to deem request for admissions admitted and sanctions. The defendant did not oppose the motion. On May 14, 2026, the court heard the plaintiff’s motion to compel responses to production of documents, set one and sanctions. The defendant did not oppose the motion.

supplemental verified response, or by a later date agreed-upon in writing, failing which the propounding party waives any right to compel a further response to the interrogatories. (Code Civ. Proc., § 2030.300, subd. (c); but see *Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 134-136 [suggesting that the 45-day deadline does not apply to (i.e., it does not begin to run with service of) objections-only responses; it only applies to responses that are required to be verified]).

The 45-day deadline “is ‘jurisdictional’ in the sense that it renders the court without authority to rule on motions to compel other than to deny them.” (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410).

“Any period of notice, or any right or duty to do any act or make any response within any period or on a date certain after the service of the document, which time period or date is prescribed by statute or rule of court, shall be extended after service by electronic means by two court days[.]” (Code Civ. Proc., § 1010.6, subd. (a)(3)(B)).

(2) Meet-and-Confer

“A motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2030.300, subd. (b)(1).) “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., § 2016.040).

(3) Separate Statement

California Rules of Court, rule 3.1345 requires that any motion involving the content of discovery contain a separate statement with the text of each request, the response, and a statement of factual and legal reasons for why an order compelling further responses is warranted.

B. Motion to Compel Responses to Form Interrogatories

Pursuant to Code of Civil Procedure section 2030.260(a), a party must respond to interrogatories within thirty (30) days after service. If a party to whom interrogatories are directed does not provide a timely response, the propounding party may move for an order compelling response to the interrogatories. (*Id.*, § 2030.290, subd. (b).) There is no time limit for a motion to compel initial responses, and no meet and confer efforts are required. (See *Id.*, § 2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411.) Nor must a separate statement be filed. (Cal. Rules of Court, rule 3.1345(b)(1).) In addition, a party who fails to provide a timely response generally waives all objections. (Code Civ. Proc., § 2030.290, subd. (a).)

III. ANALYSIS

Plaintiff served Defendant Brar with RFI, Set One, on February 13, 2025 that was accompanied by a proof of service indicating mail service (Exhibit 1 to the Declaration of Medvei). Defendant’s verified responses to Plaintiff’s RFI was due on March 20, 2025. (Plaintiff’s motion, at p. 4). Defendant did not serve any responses and pursued this motion to compel responses to RFI, set one, on July 18, 2025 (Declaration of Medvei, at p. 6).

Here, the defendant failed to produce verified responses to discovery that were due over a year ago on March 20, 2025. The court was not provided with any information that the defendant sought an extension or substantially complied with the outstanding discovery prior to this hearing.

Per Code of Civil Procedure section 1005(b) opposition papers were due on May 6, 2026. No opposition papers were filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious

arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489). Moving party meets its burden of proof.

IV. SANCTIONS

Pursuant to Code of Civil Procedure section 2030.290 provides: “(c) The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. If a party then fails to obey an order compelling answers, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of or in addition to that sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010).”

Here, Plaintiff’s counsel seeks \$2,250.00 for attorney’s fees based three hours of work in drafting the motion, researching, and preparing a reply brief, and appearing for the hearing at an hourly rate of \$750.00. The plaintiff also seeks \$60.00 in filing fees.

The request for sanctions is GRANTED in part and DENIED in part in regard to the total amount requested. Considering the relatively straightforward nature of the motion, no opposition brief being timely filed, no reply brief, the Court awards sanctions against the defendant in the amount of \$750.00, calculated based on 1.5 hours including one hour to file the present motion and half an hour to attend the hearing at the rate of \$500.00 per hour. The Court also grants the \$60.00 requested for filing fees. The total amount of sanctions award against the Defendant is \$810.00.

V. CONCLUSION

Based on the foregoing, Plaintiff’s unopposed motion to deem RFID, set one is GRANTED.

Plaintiff’s request for sanctions is GRANTED in part and DENIED in part as to the total requested amount. Defendant is ORDERED to pay the Plaintiff \$810.00 in sanctions within thirty (30) days of this Order.

Moving party to prepare the formal Order.

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